

SENATE BILL 347

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 2,
relative to elections.

WHEREAS, the Tennessee Code Annotated definition of the term "signature" is not sufficiently specific and adequate for use in Tennessee Code Annotated, Title 2, as the term applies to certain election-related documents; and

WHEREAS, the term "signature" should have a particular and specific meaning and be appropriately tailored for use in certain election laws in this State; and

WHEREAS, the term "signature" should be amended as applicable in Tennessee Code Annotated, Title 2, to simplify and expedite the verification of signatures by county election commissions, election officials, and others performing official election-related functions with respect to election-related documents, including, but not limited to, nominating petitions for candidacy and other petitions for referendum questions, recall, or initiative; voter registration applications and forms to revise a voter's registration information; applications for absentee ballots; and completed absentee ballots and related materials, for the purpose of reducing the likelihood of contested elections and litigation regarding the validity of signatures; and

WHEREAS, the General Assembly finds that this act is consistent with the purposes articulated in Tennessee Code Annotated, Section 2-1-102; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 2-1-104(a), is amended by adding the following new subdivisions:

() "Election-related document" means:

(A) A nominating petition or a petition for recall, referendum, or initiative filed in accordance with chapter 5, part 1 of this title;

(B) An application for an absentee ballot requested in accordance with chapter 6 of this title and envelopes and documents related to voting absentee containing a signature that must be verified for purposes of casting an absentee vote; and

(C) A voter registration application filed in accordance with chapter 2, parts 1 or 2 of this title and any document submitted to renew or revise the registration record of a voter;

() "Signature," notwithstanding § 1-3-105, for purposes of election-related documents:

(A) Means the full, legal handwritten signature of a registered voter or person qualified to register to vote in this state, in legible English alphabetic characters unless an exception applies pursuant to 8 U.S.C. § 1423(b)(2) or (3);

(B) Includes:

(i) One (1) or more initials of a registered voter with the voter's full legal last name in lieu of the voter's full legal name if the voter's registration record or voter registration card uses only one (1) or more initials and the voter's full legal last name; and

(ii) If a voter is physically unable to write the voter's name, the voter's individual mark, such as an "X," with the voter's full legal name written in legible English alphabetic characters by a witness who is a registered voter in the same county and who witnessed the voter make the voter's mark. The witness shall also write the witness's own name in legible English alphabetic characters next to the voter's mark and written

name. The witness shall verify the identity of the voter using a legal document acceptable to register to vote.

SECTION 2. Tennessee Code Annotated, Section 2-1-107, is amended by deleting the existing language and substituting the following:

(a) A person signing a petition as authorized under this title, whether for nomination of a candidate, for a referendum, or for another purpose, must be a qualified and registered voter and shall include the person's residential address, handwritten in legible English alphabetic characters, as shown on such person's valid voter registration card in order for that person's signature to be counted; provided, that, if the address shown on the petition:

(1) Is within the precinct for which the person is signing the petition, but is not the address shown on the person's voter registration record, the signature is valid and must be counted;

(2) Is outside of the precinct for which the person is signing the petition, regardless of the address shown on the person's voter registration card, the signature is invalid and must not be counted; and

(3) Includes information on a petition that exceeds the information contained on the person's voter registration record, the signature must not be invalidated for that reason if there is no conflict between such information. If such information conflicts, the signature is invalid and must not be counted.

(b) A registered voter who is eligible to vote in the election in question may sign a petition authorized under this title.

(c) The signature of a voter on a petition signed pursuant to this title must be compared by the county election commission to the signature on the voter registration record of the signatory. A petition signature must bear sufficient resemblance to the

signature on the voter's registration record for a lay person to discern that the signatures were written by the same person, as determined by the county election commission.

The county election commission shall not use or require extraneous evidence, such as oral testimony or affidavits, in order to verify the validity of the handwritten signatures on petitions or other election-related documents.

SECTION 3. Tennessee Code Annotated, Section 2-2-122, is amended by adding the following new subsection:

() Voters, including those who are homeless, must be registered to vote in accordance with this title. In order for county and state voter registration records to be current and correct, and to make the process of voting and verifying signatures easier for election officials and voters, each registered voter is responsible for notifying the voter's county election commission and updating the voter's registration when the voter moves, whether within the county or to another county, or to another state or territory. The required residential address written by a voter or a witness on a petition is sufficient if it contains the street number, street name, city, if applicable, and state.

SECTION 4. Tennessee Code Annotated, Section 2-5-101(b)(2), is amended by deleting the first sentence of the subdivision and substituting:

The signer of a petition must comply with § 2-1-107 in order for that voter's signature to be counted.

SECTION 5. Tennessee Code Annotated, Sections 2-5-101(b)(3) and 2-2-119, are amended by deleting the subdivision and section in their entireties.

SECTION 6. This act takes effect July 1, 2025, the public welfare requiring it.